

M/S Rathi Industries Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 November 2018 · Writ-C No. 64780 of 2009 · **Writ dismissed following Dev Prayag Paper Mill.**

HEADNOTE

Challenge to an additional-security demand and to clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires s.47(5) of the Electricity Act, 2003 dismissed in terms of the lead judgment in *M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.* (Writ-C No. 30898 of 2016, 21.3.2017).

FACTUAL SUMMARY

M/s Rathi Industries Ltd. challenged a 31 October 2009 demand for additional security for electricity supply, warning of action on non-payment, and also assailed clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003. Interim protection against the demand was granted on 1 December 2009 and continued. At final hearing, counsel accepted that identical writs had already been dismissed in *Dev Prayag Paper Mill*.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; vires of para 4.20(1) vis-à-vis s.47(5)

HOLDING

Writ challenging clause (1) of para 4.20 of the Supply Code, 2005 as ultra vires s.47(5) of the Electricity Act, 2003, and the additional-security demand, dismissed in terms of the 21.3.2017 judgment in *M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.* (Writ-C No. 30898 of 2016). ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016 (21.3.2017)			1	Referred